

22STCV33483 22STCV33483

County: los-angeles

Division: Civil Law and Motion

Department: 512

Hearing date: 2026-09-23

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Case Number: 22STCV33483 Hearing Date: September 23, 2026 Dept: 512

HEARING DATE: Weds., September 23, 2026 JUDGE /DEPT: Mkrtchyan/512

CASE NAME: Jones

v. County of Los Angeles, et al. COMPL.

FILED: 10-13-22

CASE NUMBER: 22STCV33483

NOTICE:

OK

PROCEEDINGS: MOTION

FOR ATTORNEY'S FEES

MOVING PARTY: Plaintiff

Christine Jones

RESP. PARTY: Defendant County of Los Angeles

MOTION FOR ATTORNEY'S FEES

(Gov. Code, § 12965(b); Lab. Code, § 1102.5)

TENTATIVE RULING:

Plaintiff Christine Jones's Motion

for Statutory Attorney's Fees is GRANTED in the reduced total amount of \$1,500,739.55.

Moving party
is ordered to give notice.

SERVICE:

[X] Proof of Service Timely
Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§
1013, 1013a) OK

[X] 16/21 Court Days Lapsed
(CCP §§ 12c, 1005(b)) OK

OPPOSITION: Filed on August 19, 2026 [] Late [] None

REPLY: Filed on August
26, 2026 []
Late [] None

ANALYSIS:

I.
Background

On October 13,
2022, Plaintiff Christine Jones ("Plaintiff") filed the instant action against
County of Los Angeles ("LA County") and Los Angeles County Sheriff's Department
("LA County Sheriff") ("Defendants") and Does 1-50, alleging causes of action
for Retaliation in Violation of Labor Code section 1102.5; Gender
Discrimination in Violation of Government Code Section 12940, et seq.; and
Intentional Infliction of Emotional Distress ("IIED").

On April 3,
2026, following a jury trial, judgment was entered in favor of Plaintiff and
against Defendants in the amount of \$2,697,000, and Plaintiff was deemed the
prevailing party. (See 4/3/26 Judgment, p. 5.)

On
June 2, 2026, Plaintiff filed the instant Motion for Statutory Attorneys' Fees

(the "Motion").

On August
19, 2026, Defendants filed an Opposition.

On August
26, 2026, Plaintiff filed a Reply.

On September 2, 2026, the Court, in
pertinent part, continued the hearing on the Motion "to allow plaintiff's an
opportunity to file additional declarations. Plaintiff is to file additional declarations
10 days prior to the continued hearing date. Defendant is to file additional
responses 5 days prior to the continued hearing date." (9/2/26 Order.)

On September 11, 2026, Plaintiff
filed an additional declaration from Kathleen Erskine, Esq.

On September 16, 2026, Defendants
filed a Response to the declaration.

II.

Evidentiary Objections

In conjunction with the Reply,
Plaintiff objects to ¶ 51, ¶¶ 53-62, and ¶¶ 63-108 of the Knapton declaration
accompanying the Opposition as well as Exhibits 3-6. (See Evid. Objections, pp.
1-5.) Plaintiff objects to all the paragraphs and exhibits on the grounds that
they lack foundation; Plaintiff also objects that ¶ 51 is an improper legal
conclusion, and ¶¶ 63-108 and Exhibit 6 lack personal knowledge. (See Evid.
Objections, pp. 1-5.)

The Court OVERRULES the objections.

III.

Legal Standard

Labor Code section 1102.5, subdivision
(j) states: "The court is authorized to award reasonable attorney's fees to a

plaintiff who brings a successful action for a violation of these provisions.”

Government Code section 12965, subdivision (b) states, in pertinent part: “In civil actions brought under this section, the court, in its discretion, may award to the prevailing party, including the department, reasonable attorney’s fees and costs, including expert witness fees, except that, notwithstanding Section 998 of the Code of Civil Procedure, a prevailing defendant shall not be awarded fees and costs unless the court finds the action was frivolous, unreasonable, or groundless when brought, or the plaintiff continued to litigate after it clearly became so.”

“Government Code section 12965, subdivision (b), governs cost awards in FEHA actions, allowing trial courts discretion in awards of both attorney fees and costs to prevailing FEHA parties.” (Williams v. Chino Valley Independent Fire Dist. (2015) 61 Cal.4th 97, 99.)

The Court’s objective is to award attorneys’ fee at the fair market value based on the particular action. (See Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.) “The reasonable hourly rate is that prevailing in the community for similar work.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) “ ‘[T]he fee setting inquiry in California ordinarily begins with the ‘lodestar,’ i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.’ ” (Ketchum, supra, 24 Cal.4th at p. 1134.) The lodestar method is based on several factors, as relevant to each particular case: “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, (4) the contingent nature of the fee award.” (Id., at p. 1132.) “The ‘ ‘experienced trial judge is the best judge of the value of professional services rendered in his court, and while his judgment is of course subject to review, it will not be disturbed unless the appellate court is convinced that it is clearly wrong.’ ” (Ibid.) A negative multiplier is appropriate when duplicative work is performed. (Thayer v. Wells Fargo Bank, N.A. (2001) 92 Cal.App.4th 819, 834.)

IV.

Discussion

A. Prevailing Party

Labor Code section 1102.5, subdivision

(j) states: "The court is authorized to award reasonable attorney's fees to a plaintiff who brings a successful action for a violation of these provisions."

"Government Code section 12965,

subdivision (b), governs cost awards in FEHA actions, allowing trial courts discretion in awards of both attorney fees and costs to prevailing FEHA parties." (Williams, supra, 61 Cal.4th at p. 99.)

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Here, it is undisputed that judgment

was entered in favor of Plaintiff and against Defendants, and as such Plaintiff is the prevailing party. Thus, the Court has discretion to award Plaintiff attorney fees. (See Lab. Code, § 1102.5; Gov. Code, § 12965; Williams, supra, 61 Cal.4th at p. 99.)

B. Amount of Fees

Parties' Arguments

Plaintiff moves for an award of

\$2,938,556.16 in attorney's fees, reflecting a lodestar calculation of \$1,679,174.95 multiplied by a 1.75 multiplier. (Notice of Motion.)

In Opposition, Defendants contend the

numbers listed in the Motion do not match the numbers submitted in the supporting papers. (Opp., pp. 2-3, 7.) Specifically, Defendants contend the hours incurred by the appellate firm Esner Boyer Chang are unsupported, and the Motion does not explain why these attorneys were retained. (Opp., pp. 3-4, 7.) Defendants

also contend that the Motion fails to provide billing records or time incurred as to attorney Erskine. (Opp., pp. 4, 7.) Defendants also challenge the hourly rate incurred by Plaintiff's counsel and assert that the noncontingent hourly market rates actually paid in Los Angeles is "\$916 per hour for senior partners, \$554 per hour for less senior partners, and \$350 for associates" and submit a declaration in support of their contention. (Opp., pp. 4, 8-9, Knapton Decl.) Additionally, Defendants request the Court base the attorneys' fee award solely on Plaintiff's successful causes of action and deny an award of a multiplier. (Opp., pp. 9-13.) Finally, Defendants request the Court apply a negative multiplier as Plaintiff over litigated the action. (Opp., p. 13.)

In Reply, Plaintiff contends

Defendants fail to effectively contest the majority of Plaintiff's counsel's fees, including the supporting declarations by DeRubertis and George as well as all counsel's declarations filed in support of the Motion. (Reply, pp. 1-2.)

Plaintiff challenges the reliability and credibility of the declaration submitted in support of the Opposition and contends most of Defendants' assertions regarding decreasing the attorney's fees award is speculative. (Reply, pp. 2-4.) Plaintiff states Erskine's work was necessary and reasonable, and Esner Chang and Boyer's were necessary and reasonable as well as demonstrated through Osten's declaration wherein Osten states they assisted in the opposition to non-suit in the middle of trial. (Reply, p. 3.) Plaintiff emphasizes that Plaintiff's counsel's hourly rates are reasonable and adequately supported and, moreover, Defendants' evidence in support of the Opposition relies on unidentified, anonymous data and is thus unreliable. (Reply, pp. 4-5.) Plaintiff states Plaintiff's counsel's hours are neither excessive nor improperly billed, and Defendants' claim that Plaintiff only succeeded on half of her claims is "grossly misleading and simply wrong. (Reply, pp. 6-9.) Plaintiff emphasizes arguments raised in the Motion regarding the application of a multiplier. (Reply, pp. 9-10.)

Analysis

Here, Plaintiff submits declarations from attorneys Aaron Osten, Molly McKibben, Mark Quigley, and Francisco Yeverino to support the Motion. (Motion, Decls.) Plaintiff also submits a declaration from Plaintiff, stating that Plaintiff paid Erskine \$67,932.95 in attorney's fees and can attach checks totaling this amount. (Motion, Jones Decl.)

Plaintiff further attaches declarations from “experienced employment attorneys” David DeRubertis and Victor George to establish “that the hourly rates and lodestar enhancement requested are consistent with and well within the prevailing market rates and justified under the law.” (Motion, p. 1, DeRubertis Decl., George Decl.) The Court advises the parties that the Court has had a previous social relationship with one of the non-attorney declarants offering a declaration in support of the Motion. Nonetheless, the Court will not consider either of the two non-attorney declarations in support of the Motion as the Court is able to determine the reasonableness of attorney fees without non-attorney declarations.

Plaintiff also filed and served a supplemental declaration from Erskine in support of the Motion. (See Supp. Erskine Decl.)

Plaintiff states Plaintiff’s counsel, in total, expended more than 2,138 hours of attorney time and “hundreds of hours of uncompensated paralegal time litigating this case and dozens more preparing post-trial motions and documents, including this fee application. None of the hundreds of hours spent by paralegals, including Sugheiy Gonzalez, the lead paralegal on the case, and by Sofia Rivera, the Legal Secretary assigned to the case, have been sought in this application.” (Motion, p. 8.)

Plaintiff further states that, “[b]ased on the experience of counsel as reflected in appropriate market rates, the hourly rates requested are as follows: Mark Quigley at \$1,100/hr.; Aaron Osten at \$850.00/hr., Molly McKibben at \$850.00/hr., and Francisco Yeverino at \$400/hr.” (Motion, p. 9.) “Mr. Osten, Mr. Quigley, and Ms. McKibben are all highly experienced trial lawyers and their respective hourly rate is reasonable and well within the market rate for attorneys with their level of experience and skill.” (Motion, p. 9, Osten Decl., ¶¶ 1-46; Quigley Decl., ¶¶ 2-12, 17-18, Exh. 1; McKibben Decl., ¶¶ 1-6, 8-10, Exh. 1.) Yeverino is “growing as an established trial lawyer, and his hourly rate is also well within the market rate for attorneys with his experience and skill.” (Motion, p. 9, Yeverino Decl., ¶¶ 1-5, 8-11, Exh. 1, Quigley Decl., Osten Decl.)

In total, Plaintiff states and provides evidence that Quigley incurred 27.4 hours at \$1,100 per hour; Osten incurred 1,468.41 hours at \$850.00 per hour; McKibben incurred 164.51 hours at \$850.00 per hour; Chang incurred 6.8 hours at \$700.00 per hour; Yeverino

incurred 470.9 hours at \$400.00 per hour; and Erskine incurred \$67,932.95 in this action. (See Motion, p. 10, Osten Decl., Quigley Decl., McKibben Decl., Yeverino Decl.)

Plaintiff also provides itemized billing records for Quigley, Osten, McKibben, and Yeverino that reflect how their respective time was incurred from 2022 until the instant Motion. For instance, Quigley's hours are comprised of tasks such as meetings with counsel on the action; conferring with counsel regarding discovery, trial continuance, mediation, and trial strategy; and drafting/reviewing/editing attorney fee declaration. (Motion, Quigley Decl., Exh. 1.) McKibben's hours are comprised of tasks such as exchanging emails, reviewing medical documents, reviewing witness lists, preparing trial schedule, traveling to and meeting with doctors, meeting with witnesses, reading and annotating depositions, reviewing motions in limine, preparing voir dire questions, engaging in trial preparation, and participating in jury trial. (Motion, McKibben Decl., Exh. 1.)

Yeverino's hours are comprised of tasks such as reviewing case documents, preparing and reviewing discovery items, meeting with counsel, exchanging emails, conducting research and case analyses, reviewing case files, reviewing/analyzing motions, participating in trial meetings, assisting in trial preparation, attending the final status conference, attending jury trial, reviewing trial proceedings, and editing/working on the instant Motion and accompanying declaration. (Motion, Yeverino Decl., Exh. 1.)

Further, Osten's hours are comprised of tasks such as drafting pleadings, attending case management conferences, corresponding with counsel and client, preparing discovery requests, drafting and editing stipulations, reviewing discovery responses and supplemental discovery responses, engaging in meet and confer efforts, reviewing medical records, conducting legal research, preparing for deposition, reviewing the case file, preparing for trial, editing/finalizing motions in limine, editing joint witness list, attending court hearings, and participating in Jury Trial. (Motion, Osten Decl., Exh. 1.)

The Court finds that Osten's billing statements reflect multiple blocked billing entries. To illustrate, on 5/8/2024, Osten billed 4.45 hours for "Telephone call with Katy Erskine; send and receive e-mails with Erskine, review case file/documents, telephone call with client Jones." Another example, Osten billed 6.60 hours to review

“Defendant’s Production [COLA 01491 – 01541]; organize/index docs; call with Christine Jones; Call with Quigley.” Not only this is block billing, but it also includes clerical/administrative tasks. On 10/11/2024, 8.20 hours is billed for “Plaintiff’s deposition Prep at office; finalize RFP and SROG’s to be propounded on County.” Considering the multiple block billing entries throughout the entire billing statement by Osten, the Court reduces the billing hours for Osten to 1,268 hours.

Furthermore, the Court originally found that the \$67,932.95 alleged to have been incurred by Erskine was not adequately supported and thus not reasonable. While the Court acknowledged Plaintiff submitted a declaration from Jones stating this amount was paid by Plaintiff to Erskine and provides copies of said checks (Motion, Jones Decl.; Reply Jones Decl., Exh. 1; 9/2/26 Order), the Court previously did not find there are any billing hours or records filed to support an award in this amount requested. (9/2/26 Order.)

However, following the September 2, 2026, order, Plaintiff filed and served a supplemental declaration from Erskine, who provides invoices with redactions for the items billed in this matter as well as in a separate matter. (See Supp. Erskine Decl., Exh. 1.) Erskine declares that the amounts billed in all the attached invoices were split equally between Plaintiff and a plaintiff in a separate action. (See Supp. Erskine Decl.) In response, Defendants contend that \$8,435.40 of the requested Erskine fees were done “for work that did not directly involve the instant lawsuit and was done on behalf of” a separate client than the Plaintiff in this matter, and thus this amount should be reduced from the requested fees for Erskine. (See Response to Supp. Erskine Decl.) The Court finds the Erskine hours are now substantively supported except Defendants’ request is well-taken. The Court will reduce the \$67,932.95 – which reflects half of the total amount in the submitted invoices from Erskine – requested for Erskine by \$8,435.40 for the billing entries having entirely to do with a separate individual other than Plaintiff.

Given the length of the action, the amount of motion practice involved in the action, the nature of the action, that a Jury Trial was held in the action, and the contingent nature of the fee award, the Court finds rest of the time and hours incurred by Plaintiff’s counsel to be reasonable.

Further, the Court denies

Plaintiff's request for a multiplier. (Motion, pp. 2, 11-15.)

The Court finds there is no basis to award a multiplier because the time and skill of counsel, as well as the contingent nature of the representation, are compensated with fees. Also, nothing before the Court suggests the underlying case required extraordinary legal skill and/or required counsel to bear unnecessary risk.

Finally, upon review of all the briefing and submitted evidence, the Court finds the hourly rates sought by Plaintiff to be reasonable and adequately supported. (See Motion, Osten Decl., Quigley Decl., McKibben Decl., Yeverino Decl.)

Thus, the Motion is GRANTED in the reduced amount of \$1,500,739.55, reflecting no multiplier, reduction of \$8,435.40 in Erskine's hours, and reduction of \$170,000 in Osten's hours.

To the extent Defendants request the Court reduce the attorney's fees award by the unsuccessful causes of action, the Court does not find this argument persuasive in the instant circumstances. The Court finds Plaintiff prevailed on the main causes of action raised in the operative complaint for trial, and the unsuccessful IIED cause of action was related to and/or overlapped in many respects with the successful causes of action, such as in the requisite facts, evidence, and/or relief.

Insofar as Defendants challenge the \$4,760 award to Esner Chang Boyer and Murphy, the Court finds this amount is adequately supported by the Osten declaration, wherein Osten states Esner Chang Boyer and Murphy are appellate attorneys who worked 6.8 hours in connection with assisting Plaintiff's counsel in opposing the Motion for Non-Suit filed by the County during trial. (See Motion, Osten Decl., pp. 14-15, Exh. 2.)

V.

Conclusion
& Order

For the foregoing reasons, Plaintiff Christine Jones's Motion for Statutory Attorney's Fees is GRANTED in the reduced total amount of \$1,500,739.55.

Moving party
is ordered to give notice.